



Bill Number: H.B. 2251

Farnsworth Floor Amendment

**Reference to: REGULATORY AFFAIRS AND
GOVERNMENT EFFICIENCY Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Transfers the regulatory oversight of licensed midwives from the Department of Health Services (DHS) to the Naturopathic Physicians Medical Board (Board).
2. Adds one licensed midwife who is appointed by the Governor as a member of the Board.
3. Requires, beginning July 1, 2027, all monies deposited in the Board Fund for naturopathic physician licensing and regulation to be only used for licensing and regulating naturopathic physicians.
4. Requires, beginning July 1, 2027, all monies deposited in the Board Fund for midwife licensing and regulation to be only used for licensing and regulating midwives.
5. Requires the Board to establish a separate account for monies transferred to the Board Fund for midwife licensing and regulation.
6. Applies the statutory investigative and disciplinary procedures prescribed for naturopathic physicians to licensed midwives.
7. Removes the statutory cap on midwife licensure and application fees.
8. Specifies that the Midwifery Advisory Committee is established under the Board, rather than under DHS.
9. States that the Midwifery Advisory Committee's duties are at the discretion of the Board.
10. Outlines succession procedures and expenditure authority relating to the transfer of the regulatory oversight of licensed midwives from DHS to the Board.
11. Makes technical and conforming changes.

FARNSWORTH FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2251

(Reference to REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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≤≤Double orange underlined carets enclosing an entire section≥≥ indicate that the amendment to an amendment is adding the section to the bill.

~~≤≤Orange strikeout with double orange underlined carets enclosing an entire section≥≥~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 ≤≤Section 1. Section 12-910, Arizona Revised Statutes, is amended
3 to read:

4 12-910. Scope of review

5 A. An action to review a final administrative decision shall be
6 heard and determined with convenient speed. If requested by a party to an
7 action within thirty days after filing a notice of appeal, the court shall
8 hold an evidentiary hearing, including testimony and argument, to the
9 extent necessary to make the determination required by subsection F of
10 this section. The court may hear testimony from witnesses who testified
11 at the administrative hearing and witnesses who were not called to testify
12 at the administrative hearing.

13 B. Relevant and admissible exhibits and testimony that were not
14 offered during the administrative hearing shall be admitted, and
15 objections that a party failed to make to evidence offered at the
16 administrative hearing shall be considered, unless either of the following
17 is true:

1 1. The exhibit, testimony or objection was withheld for purposes of
2 delay, harassment or other improper purpose.

3 2. Allowing admission of the exhibit or testimony or consideration
4 of the objection would cause substantial prejudice to another party.

5 C. For review of final administrative decisions of agencies that
6 are exempt from sections 41-1092.03, 41-1092.04, 41-1092.05, 41-1092.06,
7 41-1092.07, 41-1092.08, 41-1092.09, 41-1092.10, and 41-1092.11, pursuant
8 to section 41-1092.02, the trial shall be de novo if trial de novo is
9 demanded in the notice of appeal or motion of an appellee other than the
10 agency and if a hearing was not held by the agency or the proceedings
11 before the agency were not stenographically reported or mechanically
12 recorded so that a transcript might be made. On demand of any party, if a
13 trial de novo is available under this section, it may be with a jury,
14 except that a trial of an administrative decision under section 25-522
15 shall be to the court.

16 D. For review of final administrative decisions of agencies that
17 regulate a profession or occupation pursuant to title 32, title 36,
18 chapter 4, article 6~~{{, title 36, chapter 6, article 7}}~~ or title 36,
19 chapter 17, the trial shall be de novo if trial de novo is demanded in the
20 notice of appeal or motion of an appellee other than the agency.

21 E. The record in the superior court shall consist of the record of
22 the administrative proceeding, and the record of any evidentiary hearing,
23 or the record of the trial de novo.

24 F. After reviewing the administrative record and supplementing
25 evidence presented at the evidentiary hearing, the court may affirm,
26 reverse, modify or vacate and remand the agency action. The court shall
27 affirm the agency action unless the court concludes that the agency's
28 action is contrary to law, is not supported by substantial evidence, is
29 arbitrary and capricious or is an abuse of discretion. In a proceeding
30 brought by or against the regulated party, the court shall decide all
31 questions of law, including the interpretation of a constitutional or
32 statutory provision or a rule adopted by an agency, without deference to
33 any previous determination that may have been made on the question by the
34 agency. In a proceeding brought by or against the regulated party, the
35 court shall decide all questions of fact without deference to any previous
36 determination that may have been made on the question by the agency.
37 Notwithstanding any other law, this subsection applies in any action for
38 judicial review of any agency action that is authorized by law.

39 G. Notwithstanding subsection F of this section, if the action
40 arises out of title 20, chapter 15, article 2, the court shall affirm the
41 agency action unless after reviewing the administrative record and
42 supplementing evidence presented at the evidentiary hearing the court
43 concludes that the action is not supported by substantial evidence, is
44 contrary to law, is arbitrary and capricious or is an abuse of discretion.

45 H. This section does not apply to any agency action pursuant to
46 title 40, chapter 2, article 5 or 6.2. >>

1 ~~Sec. 1.~~ Section 20-3151, Arizona Revised Statutes, is amended to
2 read:

3 20-3151. Definitions

4 For the purposes of this section:

5 1. "Enrollee" means an individual who is enrolled in a health care
6 plan provided by a health care insurer.

7 2. "Health care insurer" means a disability insurer, group
8 disability insurer, blanket disability insurer, health care services
9 organization, hospital service corporation, medical service corporation or
10 hospital and medical service corporation.

11 3. "Health care plan" means a policy, contract or evidence of
12 coverage issued to an enrollee. Health care plan does not include limited
13 benefit coverage as defined in section 20-1137.

14 4. "Health care professional" means a professional who is regulated
15 pursuant to title 32, chapter 7, 8, 11, 13, 14, 15, 15.1, 16, 17, 18, 19,
16 19.1, 25, 28, 29, 33, 34, 35, 39 or 41~~{, title 36, chapter 6, article 7}~~
17 or title 36, chapter 17.~~>>~~

18 ~~Sec. 2.~~ Section 32-1502, Arizona Revised Statutes, is amended to
19 read:

20 32-1502. Naturopathic physicians medical board: members:
21 appointment: qualifications: terms of office:
22 immunity

23 A. The naturopathic physicians medical board is established
24 consisting of the following members:

25 1. Four physician members ~~{WHO ARE}~~ appointed by the governor.
26 Each physician member shall be:

27 (a) A resident of this state for at least five years immediately
28 preceding the appointment.

29 (b) A doctor of naturopathic medicine with a degree from a
30 naturopathic school or college approved by the board who has engaged in
31 full-time practice of naturopathic medicine for at least five years
32 immediately preceding the appointment.

33 ~~{2. ONE LICENSED MIDWIFE WHO IS APPOINTED BY THE GOVERNOR AND WHO~~
34 ~~SHALL BE:~~

35 ~~(a) A RESIDENT OF THIS STATE FOR AT LEAST FIVE YEARS IMMEDIATELY~~
36 ~~PRECEDING THE APPOINTMENT.~~

37 ~~(b) A MIDWIFE WHO IS LICENSED PURSUANT TO ARTICLE 5 OF THIS CHAPTER~~
38 ~~AND WHO HAS ENGAGED IN A FULL-TIME PRACTICE OF MIDWIFERY FOR AT LEAST FIVE~~
39 ~~YEARS IMMEDIATELY PRECEDING THE APPOINTMENT.}~~

40 ~~{2.}~~ ~~{3.}~~ Three public members ~~{WHO ARE}~~ appointed by the
41 governor. Each public member shall:

42 (a) Be a resident of this state for at least five years immediately
43 preceding the appointment.

44 (b) Not be connected, in any manner, with or have any interest in a
45 school of medicine, a health care institution or any person practicing any
46 form of healing or treatment of bodily or mental ailments.

47 (c) Demonstrate an interest in the health problems in this state.

48 B. Before appointment by the governor, a prospective member of the
49 board shall submit a full set of fingerprints to the governor for the

1 purpose of obtaining a state and federal criminal records check pursuant
2 to section 41-1750 and Public Law 92-544. The department of public safety
3 may exchange this fingerprint data with the federal bureau of
4 investigation.

5 C. The terms of office of the physician members{{, THE MIDWIFE
6 MEMBER}} and the public members are five years to begin and end on
7 June 30. Each physician member{{, EACH MIDWIFE MEMBER}} and each public
8 member continue to hold office until the appointment and qualification of
9 their successors, subject to the following exceptions:

10 1. A member of the board may be removed from office if the governor
11 finds the member was guilty of malfeasance, misfeasance or dishonorable
12 conduct.

13 2. The term of any member automatically ends on resignation,
14 permanent removal from this state or removal from this state for a period
15 of more than six months.

16 D. There shall be no monetary liability on the part of and no cause
17 of action shall arise against the members of the board, the
18 secretary-treasurer or permanent or temporary personnel of the board for
19 any act done or proceeding undertaken or performed in good faith and in
20 furtherance of the purposes of this chapter.>>

21 <<Sec. 3. Section 32-1505, Arizona Revised Statutes, as amended by
22 Laws 2024, chapter 222, section 17, is amended to read:

23 32-1505. Naturopathic physicians medical board fund; separate
24 licensed midwife account

25 A. The naturopathic physicians medical board fund is established.
26 The board shall administer the fund. Pursuant to sections 35-146 and
27 35-147, the board shall deposit fifteen percent of all monies from
28 whatever source that come into the possession of the board in the state
29 general fund and deposit the remaining eighty-five percent in the
30 naturopathic physicians medical board fund.

31 B. Monies deposited in the naturopathic physicians medical board
32 fund are subject to section 35-143.01.

33 {{C. BEGINNING JULY 1, 2027, ALL MONIES DEPOSITED IN THE
34 NATUROPATHIC PHYSICIANS MEDICAL BOARD FUND PURSUANT TO SECTION 32-1527 FOR
35 NATUROPATHIC PHYSICIAN LICENSING AND REGULATION MUST BE USED ONLY FOR
36 LICENSING AND REGULATING NATUROPATHIC PHYSICIANS PURSUANT TO THIS ARTICLE
37 AND ARTICLES 2, 3 AND 4 OF THIS CHAPTER AND MAY NOT BE USED FOR LICENSING
38 AND REGULATING MIDWIVES PURSUANT TO ARTICLE 5 OF THIS CHAPTER.

39 D. BEGINNING JULY 1, 2027, ALL MONIES DEPOSITED IN THE NATUROPATHIC
40 PHYSICIANS MEDICAL BOARD FUND PURSUANT TO ARTICLE 5 OF THIS CHAPTER FOR
41 MIDWIFE LICENSING AND REGULATION MUST BE USED ONLY FOR LICENSING AND
42 REGULATING MIDWIVES PURSUANT TO ARTICLE 5 OF THIS CHAPTER AND MAY NOT BE
43 USED FOR LICENSING AND REGULATING NATUROPATHIC PHYSICIANS PURSUANT TO THIS
44 ARTICLE AND ARTICLES 2, 3 AND 4 OF THIS CHAPTER.

45 E. THE BOARD SHALL ESTABLISH A SEPARATE ACCOUNT IN THE FUND FOR
46 MONIES TRANSFERRED TO THE FUND PURSUANT TO ARTICLE 5 OF THIS CHAPTER FOR
47 MIDWIFE LICENSING AND REGULATION.}}>>

1 <<Sec. 4. Section 32-1505, Arizona Revised Statutes, as amended by
2 Laws 2024, chapter 222, section 18, is amended to read:

3 32-1505. Naturopathic physicians medical board fund; separate
4 licensed midwife account

5 A. The naturopathic physicians medical board fund is established.
6 The board shall administer the fund. Pursuant to sections 35-146 and
7 35-147, the board shall deposit ten percent of all monies from whatever
8 source that come into the possession of the board in the state general
9 fund and deposit the remaining ninety percent in the naturopathic
10 physicians medical board fund.

11 B. Monies deposited in the naturopathic physicians medical board
12 fund are subject to section 35-143.01.

13 {{C. BEGINNING JULY 1, 2027, ALL MONIES DEPOSITED IN THE
14 NATUROPATHIC PHYSICIANS MEDICAL BOARD FUND PURSUANT TO SECTION 32-1527 FOR
15 NATUROPATHIC PHYSICIAN LICENSING AND REGULATION MUST BE USED ONLY FOR
16 LICENSING AND REGULATING NATUROPATHIC PHYSICIANS PURSUANT TO THIS ARTICLE
17 AND ARTICLES 2, 3 AND 4 OF THIS CHAPTER AND MAY NOT BE USED FOR LICENSING
18 AND REGULATING MIDWIVES PURSUANT TO ARTICLE 5 OF THIS CHAPTER.

19 D. BEGINNING JULY 1, 2027, ALL MONIES DEPOSITED IN THE NATUROPATHIC
20 PHYSICIANS MEDICAL BOARD FUND PURSUANT TO ARTICLE 5 OF THIS CHAPTER FOR
21 MIDWIFE LICENSING AND REGULATION MUST BE USED ONLY FOR LICENSING AND
22 REGULATING MIDWIVES PURSUANT TO ARTICLE 5 OF THIS CHAPTER AND MAY NOT BE
23 USED FOR LICENSING AND REGULATING NATUROPATHIC PHYSICIANS PURSUANT TO THIS
24 ARTICLE AND ARTICLES 2, 3 AND 4 OF THIS CHAPTER.

25 E. THE BOARD SHALL ESTABLISH A SEPARATE ACCOUNT IN THE FUND FOR
26 MONIES TRANSFERRED TO THE FUND PURSUANT TO ARTICLE 5 OF THIS CHAPTER FOR
27 MIDWIFE LICENSING AND REGULATION.}}>>

28 <<Sec. 5. Transfer and renumber

29 {{Title 36, chapter 6, article 7, Arizona Revised Statutes, is
30 transferred and renumbered for placement in title 32, chapter 14, Arizona
31 Revised Statutes, as article 5, as added by this act. The following
32 sections are transferred and renumbered for placement in title 32, chapter
33 14, article 5, Arizona Revised Statutes:

Former Sections	New Sections
36-751	32-1591
36-752	32-1591.01
36-753	32-1591.02
36-754	32-1591.03
36-755	32-1591.04
36-756	32-1591.05
36-756.01	32-1591.06
36-757	32-1591.07
36-758	32-1591.08
36-759	32-1591.09
36-760	32-1591.10}}>>

1 Sec. 6. Section ~~{{36-751}}~~ {{32-1591}}, Arizona Revised Statutes,
2 ~~{{as transferred and renumbered.}}~~ is amended to read:

3 ~~{{36-751.}}~~ {{32-1591.}} Definitions

4 In this article, unless the context otherwise requires:

5 ~~{{1. "Department" means the department of health services.}}~~

6 ~~{{2.}}~~ {{1.}} "Director" means the {{EXECUTIVE}} director of the
7 ~~{{department}}~~ ~~of health services~~ {{BOARD}}.

8 ~~{{3.}}~~ {{2.}} "LICENSED MIDWIFE" MEANS A MIDWIFE WHO IS LICENSED
9 PURSUANT TO THIS ARTICLE.

10 ~~3.~~ {{4.}} {{3.}} "Midwife" means a person who delivers a baby or
11 provides health care related to pregnancy, labor, delivery and postpartum
12 care of the mother and her infant.

13 ~~Sec. 7. Section 32-1591.02, Arizona Revised Statutes, as~~
14 ~~transferred and renumbered, is amended to read:~~

15 32-1591.02. Application for license as midwife

16 A person who desires to obtain a license to practice midwifery shall
17 ~~{{make written application}}~~ {{APPLY}} to the ~~{{director of the department~~
18 ~~of health services, upon}}~~ {{BOARD IN WRITING ON}} a form to be supplied
19 by the ~~{{director}}~~ {{BOARD}} and shall ~~{{furnish such}}~~ {{PROVIDE THE}}
20 information ~~{{as may be}}~~ required by the ~~{{director}}~~ {{BOARD}}.>>

21 Sec. 8. Section {{32-1591.04}}, Arizona Revised Statutes, ~~{{as~~
22 ~~transferred and renumbered.}}~~ is amended to read:

23 ~~{{36-755.}}~~ {{32-1591.04.}} Powers and duties of the board

24 A. The ~~{{director}}~~ {{BOARD}} may adopt rules necessary for the
25 proper administration and enforcement of this article.

26 B. The ~~{{director}}~~ {{BOARD}} shall, by rule:

27 1. Define and describe, consistent with this article and the laws
28 of this state, the duties and limits of the practice of midwifery.

29 2. Adopt standards with respect to the practice of midwifery
30 designed to safeguard the health and safety of the mother and child.

31 3. Establish the criteria for granting, denying, suspending and
32 revoking a license in order to protect the health and safety of the mother
33 and child.

34 4. Describe and define reasonable and necessary minimum
35 qualifications for LICENSED midwives, including:

36 (a) The ability to read and write.

37 (b) Knowledge of the fundamentals of hygiene.

38 (c) The ability to recognize abnormal or potentially abnormal
39 conditions during pregnancy, labor and delivery and following birth.

40 (d) Knowledge of the laws of this state concerning reporting of
41 births, prenatal blood tests and newborn screening and of the rules
42 pertaining to midwifery.

43 (e) Education requirements.

44 (f) Age requirements.

45 ~~[C. THE DIRECTOR SHALL CONSIDER THE MOST RECENT MIDWIFERY JOB~~
46 ~~ANALYSIS ISSUED BY THE NORTH AMERICAN REGISTRY OF MIDWIVES WHEN ADOPTING~~
47 ~~OR AMENDING RULES RELATING TO THE MIDWIFERY SCOPE OF PRACTICE.]~~

1 ~~Sec. 9.~~ Section 32-1591.05, Arizona Revised Statutes, as
2 transferred and renumbered, is amended to read:

3 32-1591.05. Denial, suspension and revocation of licenses;
4 disciplinary action; duty to report;
5 investigatory powers; hearing; appeal; civil
6 penalties; injunctions

7 A. The ~~{{director}}~~ {{BOARD}} may deny, suspend or revoke the
8 license of any midwife ~~{{OR MAY DISCIPLINE ANY LICENSED MIDWIFE}}~~ who:

9 1. Violates any provision of this article or the rules adopted
10 under this article.

11 2. Has been convicted of a felony or a misdemeanor involving moral
12 turpitude.

13 3. Indulges in conduct or a practice detrimental to the health or
14 safety of the mother and child.

15 B. The ~~{{department}}~~ {{BOARD}} may deny a license without holding
16 a hearing. An applicant may appeal this decision pursuant to title 41,
17 chapter 6, article 10.

18 ~~{{C. The department shall conduct any hearing to suspend or revoke~~
19 ~~a license in accordance with the procedures established pursuant to title~~
20 ~~41, chapter 6, article 10. If the director determines at the conclusion~~
21 ~~of a hearing that grounds exist to suspend or revoke a license, he may do~~
22 ~~so permanently or for any period of time he deems appropriate and under~~
23 ~~any conditions that he deems appropriate. An applicant for licensure or a~~
24 ~~licensee may appeal the final decision of the director.}}~~

25 ~~{{C. THE BOARD ON ITS OWN MOTION MAY INVESTIGATE ANY EVIDENCE THAT~~
26 ~~APPEARS TO SHOW THAT A LICENSED MIDWIFE IS OR MAY BE MEDICALLY~~
27 ~~INCOMPETENT, IS OR MAY BE GUILTY OF UNPROFESSIONAL CONDUCT OR IS OR MAY BE~~
28 ~~MENTALLY OR PHYSICALLY UNABLE TO ENGAGE SAFELY IN THE PRACTICE OF~~
29 ~~MIDWIFERY. ANY PERSON MAY AND ANY HEALTH CARE INSTITUTION SHALL REPORT TO~~
30 ~~THE BOARD ANY INFORMATION THAT APPEARS TO SHOW THAT A LICENSED MIDWIFE IS~~
31 ~~OR MAY BE MEDICALLY INCOMPETENT, IS OR MAY BE GUILTY OF UNPROFESSIONAL~~
32 ~~CONDUCT OR IS OR MAY BE MENTALLY OR PHYSICALLY UNABLE TO ENGAGE SAFELY IN~~
33 ~~THE PRACTICE OF MIDWIFERY. THE BOARD OR THE DIRECTOR SHALL NOTIFY THE~~
34 ~~LICENSED MIDWIFE AS TO THE CONTENT OF THE COMPLAINT AS SOON AS REASONABLE.~~
35 ~~ANY PERSON OR ENTITY THAT REPORTS OR PROVIDES INFORMATION TO THE BOARD IN~~
36 ~~GOOD FAITH IS NOT SUBJECT TO AN ACTION FOR CIVIL DAMAGES. IF REQUESTED,~~
37 ~~THE BOARD MAY NOT DISCLOSE THE NAME OF A PERSON WHO SUPPLIES INFORMATION~~
38 ~~REGARDING A LICENSED MIDWIFE'S DRUG OR ALCOHOL IMPAIRMENT. IT IS AN ACT~~
39 ~~OF UNPROFESSIONAL CONDUCT FOR ANY LICENSED MIDWIFE TO FAIL TO REPORT AS~~
40 ~~REQUIRED BY THIS SECTION. THE BOARD SHALL REPORT ANY HEALTH CARE~~
41 ~~INSTITUTION THAT FAILS TO REPORT AS REQUIRED BY THIS SECTION TO THAT~~
42 ~~INSTITUTION'S LICENSING AGENCY.~~

43 ~~D. THE BOARD OR, IF DELEGATED BY THE BOARD, THE DIRECTOR SHALL~~
44 ~~REQUIRE ANY COMBINATION OF MENTAL, PHYSICAL OR ORAL OR WRITTEN MEDICAL~~
45 ~~COMPETENCY EXAMINATIONS AND CONDUCT NECESSARY INVESTIGATIONS, INCLUDING~~
46 ~~INVESTIGATIONAL INTERVIEWS BETWEEN REPRESENTATIVES OF THE BOARD AND THE~~
47 ~~LICENSED MIDWIFE, TO FULLY INFORM ITSELF WITH RESPECT TO ANY INFORMATION~~
48 ~~FILED WITH THE BOARD UNDER THIS SECTION. THESE EXAMINATIONS MAY INCLUDE~~
49 ~~BIOLOGICAL FLUID TESTING AND PSYCHOLOGICAL OR PSYCHIATRIC EVALUATION. THE~~

1 BOARD OR, IF DELEGATED BY THE BOARD, THE DIRECTOR MAY REQUIRE THE LICENSED
2 MIDWIFE, AT THE LICENSED MIDWIFE'S EXPENSE, TO UNDERGO AN ASSESSMENT BY A
3 BOARD-APPROVED REHABILITATIVE, RETRAINING OR ASSESSMENT PROGRAM.

4 E. IF THE BOARD FINDS, BASED ON THE INFORMATION IT RECEIVES UNDER
5 THIS SECTION, THAT THE PUBLIC HEALTH, SAFETY OR WELFARE IMPERATIVELY
6 REQUIRES EMERGENCY ACTION AND INCORPORATES A FINDING TO THAT EFFECT IN ITS
7 ORDER, THE BOARD MAY RESTRICT, LIMIT OR ORDER A SUMMARY SUSPENSION OF A
8 LICENSE PENDING PROCEEDINGS FOR REVOCATION OR OTHER ACTION. IF THE BOARD
9 TAKES ACTION PURSUANT TO THIS SUBSECTION, THE BOARD SHALL ALSO SERVE THE
10 LICENSED MIDWIFE WITH A WRITTEN NOTICE THAT STATES THE CHARGES AND THAT
11 THE LICENSED MIDWIFE IS ENTITLED TO A FORMAL HEARING BEFORE THE BOARD OR
12 AN ADMINISTRATIVE LAW JUDGE.

13 F. IF, AFTER COMPLETING ITS INVESTIGATION, THE BOARD FINDS THAT THE
14 INFORMATION PROVIDED PURSUANT TO SUBSECTION C OF THIS SECTION IS NOT OF
15 SUFFICIENT SERIOUSNESS TO MERIT DISCIPLINARY ACTION AGAINST THE LICENSED
16 MIDWIFE, THE BOARD MAY TAKE ANY OF THE FOLLOWING ACTIONS:

17 1. DISMISS IF, IN THE OPINION OF THE BOARD, THE INFORMATION IS
18 WITHOUT MERIT.

19 2. FILE A LETTER OF CONCERN.

20 3. ISSUE A NONDISCIPLINARY ORDER REQUIRING THE LICENSED MIDWIFE TO
21 COMPLETE A PRESCRIBED NUMBER OF HOURS OF CONTINUING EDUCATION IN AN AREA
22 OR AREAS PRESCRIBED BY THE BOARD TO PROVIDE THE LICENSED MIDWIFE WITH THE
23 NECESSARY UNDERSTANDING OF CURRENT DEVELOPMENTS, SKILLS, PROCEDURES OR
24 TREATMENT.

25 G. IF THE BOARD FINDS THAT IT CAN TAKE REHABILITATIVE OR
26 DISCIPLINARY ACTION WITHOUT THE PRESENCE OF THE LICENSED MIDWIFE AT A
27 FORMAL INTERVIEW, THE BOARD MAY ENTER INTO A CONSENT AGREEMENT WITH THE
28 LICENSED MIDWIFE TO LIMIT OR RESTRICT THE LICENSED MIDWIFE'S PRACTICE OR
29 TO REHABILITATE THE LICENSED MIDWIFE IN ORDER TO PROTECT THE PUBLIC AND
30 ENSURE THE LICENSED MIDWIFE'S ABILITY TO SAFELY ENGAGE IN THE PRACTICE OF
31 MIDWIFERY. THE BOARD MAY ALSO REQUIRE THE LICENSED MIDWIFE TO
32 SUCCESSFULLY COMPLETE A BOARD-APPROVED REHABILITATIVE, RETRAINING OR
33 ASSESSMENT PROGRAM.

34 H. IF AFTER COMPLETING ITS INVESTIGATION THE BOARD BELIEVES THAT
35 THE INFORMATION IS OR MAY BE TRUE, THE BOARD MAY REQUEST A FORMAL
36 INTERVIEW WITH THE LICENSED MIDWIFE. IF THE LICENSED MIDWIFE REFUSES THE
37 INVITATION OR ACCEPTS AND THE RESULTS INDICATE THAT GROUNDS MAY EXIST FOR
38 SUSPENSION OF THE LICENSED MIDWIFE'S LICENSE FOR MORE THAN TWELVE MONTHS
39 OR REVOCATION OF THE LICENSE, THE BOARD MAY ISSUE A FORMAL COMPLAINT AND
40 ORDER THAT A HEARING BE HELD PURSUANT TO TITLE 41, CHAPTER 6, ARTICLE 10.
41 IF AFTER COMPLETING A FORMAL INTERVIEW THE BOARD FINDS THE INFORMATION
42 PROVIDED UNDER THIS SECTION IS NOT OF SUFFICIENT SERIOUSNESS TO MERIT
43 SUSPENSION FOR MORE THAN TWELVE MONTHS OR REVOCATION OF THE LICENSE, THE
44 BOARD MAY TAKE THE FOLLOWING ACTIONS:

45 1. DISMISS IF, IN THE OPINION OF THE BOARD, THE COMPLAINT IS
46 WITHOUT MERIT.

47 2. FILE A LETTER OF CONCERN.

48 3. FILE A LETTER OF REPRIMAND.

1 4. ISSUE A DECREE OF CENSURE. A DECREE OF CENSURE IS AN OFFICIAL
2 ACTION AGAINST THE LICENSED MIDWIFE'S LICENSE AND MAY INCLUDE A
3 REQUIREMENT FOR RESTITUTION OF FEES TO A PATIENT RESULTING FROM VIOLATIONS
4 OF THIS ARTICLE OR RULES ADOPTED UNDER THIS CHAPTER.

5 5. FIX A PERIOD AND TERMS OF PROBATION BEST ADAPTED TO PROTECT THE
6 PUBLIC HEALTH AND SAFETY AND REHABILITATE OR EDUCATE THE LICENSED MIDWIFE
7 CONCERNED. PROBATION MAY INCLUDE TEMPORARY LICENSE SUSPENSION FOR NOT
8 MORE THAN TWELVE MONTHS, RESTRICTION OF THE LICENSED MIDWIFE'S LICENSE TO
9 PRACTICE MIDWIFERY, A REQUIREMENT FOR RESTITUTION OF FEES TO A PATIENT OR
10 EDUCATION OR REHABILITATION AT THE LICENSED MIDWIFE'S OWN EXPENSE. IF A
11 LICENSED MIDWIFE FAILS TO COMPLY WITH THE TERMS OF PROBATION, THE BOARD
12 SHALL SERVE THE LICENSED MIDWIFE WITH A WRITTEN NOTICE THAT STATES THAT
13 THE LICENSED MIDWIFE IS SUBJECT TO A FORMAL HEARING BASED ON THE
14 INFORMATION CONSIDERED BY THE BOARD AT THE FORMAL INTERVIEW AND ANY OTHER
15 ACTS OR CONDUCT ALLEGED TO BE IN VIOLATION OF THIS ARTICLE OR RULES
16 ADOPTED BY THE BOARD PURSUANT TO THIS CHAPTER, INCLUDING NONCOMPLIANCE
17 WITH THE TERMS OF PROBATION, A CONSENT AGREEMENT OR A STIPULATED
18 AGREEMENT.

19 6. ENTER INTO AN AGREEMENT WITH THE LICENSED MIDWIFE TO RESTRICT OR
20 LIMIT THE LICENSED MIDWIFE'S PRACTICE OR MEDICAL ACTIVITIES IN ORDER TO
21 REHABILITATE, RETRAIN OR ASSESS THE LICENSED MIDWIFE. PROTECT THE PUBLIC
22 AND ENSURE THE LICENSED MIDWIFE'S ABILITY TO SAFELY ENGAGE IN THE PRACTICE
23 OF MIDWIFERY. THE BOARD MAY ALSO REQUIRE THE LICENSED MIDWIFE TO
24 SUCCESSFULLY COMPLETE A BOARD-APPROVED REHABILITATIVE, RETRAINING OR
25 ASSESSMENT PROGRAM AT THE LICENSED MIDWIFE'S OWN EXPENSE PURSUANT TO
26 SUBSECTION G OF THIS SECTION.

27 7. ISSUE A NONDISCIPLINARY ORDER REQUIRING THE LICENSED MIDWIFE TO
28 COMPLETE A PRESCRIBED NUMBER OF HOURS OF CONTINUING EDUCATION IN AN AREA
29 OR AREAS PRESCRIBED BY THE BOARD TO PROVIDE THE LICENSED MIDWIFE WITH THE
30 NECESSARY UNDERSTANDING OF CURRENT DEVELOPMENTS, SKILLS, PROCEDURES OR
31 TREATMENT.

32 I. IF THE BOARD FINDS THAT THE INFORMATION PROVIDED IN AN
33 INVESTIGATION WARRANTS SUSPENSION OR REVOCATION OF A LICENSE ISSUED UNDER
34 THIS ARTICLE, THE BOARD SHALL INITIATE FORMAL PROCEEDINGS PURSUANT TO
35 TITLE 41, CHAPTER 6, ARTICLE 10.

36 J. ANY LICENSED MIDWIFE WHO AFTER A FORMAL HEARING IS FOUND BY THE
37 BOARD TO BE GUILTY OF UNPROFESSIONAL CONDUCT, TO BE MENTALLY OR PHYSICALLY
38 UNABLE TO SAFELY ENGAGE IN THE PRACTICE OF MIDWIFERY OR TO BE MEDICALLY
39 INCOMPETENT IS SUBJECT TO CENSURE, PROBATION AS PROVIDED IN THIS SECTION,
40 SUSPENSION OR REVOCATION OF A LICENSE OR ANY COMBINATION OF THESE UNDER
41 ANY CONDITIONS AS THE BOARD DEEMS APPROPRIATE FOR THE PROTECTION OF THE
42 PUBLIC HEALTH AND SAFETY AND JUST IN THE CIRCUMSTANCE. THE BOARD MAY
43 CHARGE THE COSTS OF FORMAL HEARINGS TO THE LICENSED MIDWIFE WHOM THE BOARD
44 FINDS TO BE IN VIOLATION OF THIS CHAPTER.

45 K. IF THE BOARD, DURING THE COURSE OF ANY INVESTIGATION, DETERMINES
46 THAT A CRIMINAL VIOLATION MAY HAVE OCCURRED INVOLVING THE DELIVERY OF
47 HEALTH CARE, THE BOARD SHALL MAKE THE EVIDENCE OF VIOLATIONS AVAILABLE TO
48 THE APPROPRIATE CRIMINAL JUSTICE AGENCY FOR ITS CONSIDERATION.

1 L. NOTICE OF A COMPLAINT AND HEARING IS EFFECTIVE BY A TRUE COPY OF
2 IT BEING SENT BY CERTIFIED MAIL TO THE LICENSED MIDWIFE'S LAST KNOWN
3 ADDRESS OF RECORD IN THE BOARD'S FILES. NOTICE OF THE COMPLAINT AND
4 HEARING IS COMPLETE ON THE DATE OF ITS DEPOSIT IN THE MAIL.

5 M. THE BOARD MAY ACCEPT THE SURRENDER OF AN ACTIVE LICENSE FROM A
6 LICENSED MIDWIFE WHO ADMITS IN WRITING TO ANY OF THE FOLLOWING:

- 7 1. BEING UNABLE TO SAFELY ENGAGE IN THE PRACTICE OF MIDWIFERY.
8 2. HAVING COMMITTED AN ACT OF UNPROFESSIONAL CONDUCT.
9 3. HAVING VIOLATED THIS ARTICLE OR A BOARD RULE.

10 N. THE BOARD MAY ADMINISTER THE OATH TO ALL WITNESSES AND SHALL
11 KEEP A WRITTEN TRANSCRIPT OF ALL ORAL TESTIMONY SUBMITTED AT THE HEARING
12 AND THE ORIGINAL OR A COPY OF ALL OTHER EVIDENCE SUBMITTED. THE BOARD MAY
13 WAIVE THE TECHNICAL RULES OF EVIDENCE AT ANY HEARING CONDUCTED UNDER THIS
14 SECTION.

15 O. EXCEPT AS PROVIDED IN SECTION 41-1092.08, SUBSECTION H, AN
16 APPEAL TO THE SUPERIOR COURT IN MARICOPA COUNTY MAY BE TAKEN FROM
17 DECISIONS OF THE BOARD PURSUANT TO TITLE 12, CHAPTER 7, ARTICLE 6.}

18 ~~{{D.}}~~ ~~{{P.}}~~ In addition to other disciplinary action, the
19 ~~{{director}}~~~~{{BOARD}}~~ may assess a civil penalty of not more than ~~{{one~~
20 ~~hundred dollars}}~~ ~~{{100}}~~ for each violation of this article or a rule
21 adopted pursuant to this article as determined by a hearing held pursuant
22 to this section. Each day that a violation continues constitutes a
23 separate offense. The attorney general or the county attorney may bring
24 an action in the name of this state to enforce a civil penalty. The action
25 shall be filed in the superior court or in justice court in the county
26 where the violation occurred.

27 ~~{{E.}}~~ ~~{{Q.}}~~ In addition to other available remedies, the
28 ~~{{director}}~~ ~~{{BOARD}}~~ may apply to the superior court for an injunction
29 to restrain a person from violating a provision of this article or a rule
30 adopted pursuant to this article. The court shall grant a temporary
31 restraining order, a preliminary injunction or a permanent injunction
32 without bond. The defendant may be served in any county of this
33 state. The action shall be brought on behalf of the ~~{{director}}~~
34 ~~{{BOARD}}~~ by the attorney general or the county attorney of the county in
35 which the violation is occurring.}}

36 ~~<<~~Sec. 10. Section 32-1591.06, Arizona Revised Statutes, as
37 transferred and renumbered, is amended to read:

38 32-1591.06. Investigations; right to examine and copy
39 evidence; witnesses; documents; subpoenas;
40 confidentiality

41 ~~A. {{The director may investigate information that indicates that a~~
42 ~~person is violating this article.}}~~ In connection with an investigation
43 ~~{{BY THE BOARD ON ITS OWN MOTION, OR AS THE RESULT OF INFORMATION RECEIVED~~
44 ~~PURSUANT TO SECTION 32-1591.05}}~~, the ~~{{department}}~~ ~~{{BOARD AND ITS DULY~~
45 ~~AUTHORIZED AGENTS OR EMPLOYEES AT ALL REASONABLE TIMES}}~~ may examine and
46 copy documents~~{{, REPORTS, RECORDS}}~~ and other physical evidence ~~{{OF THE~~
47 ~~PERSON THE BOARD IS INVESTIGATING}}~~ wherever located that relate to the
48 conduct~~{{,}}~~ ~~{{or}}~~ competency ~~{{OR MENTAL OR PHYSICAL ABILITY}}~~ of a

1 midwife ~~{{pursuant to the requirements of this article}}~~ ~~{{TO SAFELY~~
2 ~~PRACTICE MIDWIFERY}}~~.

3 ~~{{B. Pursuant to an investigation or an administrative proceeding,~~
4 ~~the director may issue subpoenas to compel the testimony of witnesses or~~
5 ~~to demand the production of relevant documents and other physical~~
6 ~~evidence. If a person refuses to comply with a subpoena, the director may~~
7 ~~apply to the superior court for an order to compel compliance.}}~~

8 ~~{{B. FOR THE PURPOSE OF ALL INVESTIGATIONS AND PROCEEDINGS~~
9 ~~CONDUCTED BY THE BOARD:~~

10 ~~1. THE BOARD ON ITS OWN INITIATIVE OR ON APPLICATION OF ANY PERSON~~
11 ~~INVOLVED IN THE INVESTIGATION MAY ISSUE SUBPOENAS TO REQUIRE THE~~
12 ~~ATTENDANCE AND TESTIMONY OF WITNESSES OR TO DEMAND THE PRODUCTION FOR~~
13 ~~EXAMINATION OR COPYING OF DOCUMENTS OR ANY OTHER PHYSICAL EVIDENCE THAT~~
14 ~~RELATES TO THE COMPETENCE, UNPROFESSIONAL CONDUCT OR MENTAL OR PHYSICAL~~
15 ~~ABILITY OF A LICENSED MIDWIFE TO SAFELY PRACTICE MIDWIFERY. WITHIN FIVE~~
16 ~~DAYS AFTER A PERSON IS SERVED WITH A SUBPOENA, THAT PERSON MAY PETITION~~
17 ~~THE BOARD TO REVOKE, LIMIT OR MODIFY THE SUBPOENA. THE BOARD SHALL DO SO~~
18 ~~IF IN THE BOARD'S OPINION THE EVIDENCE REQUIRED DOES NOT RELATE TO~~
19 ~~UNLAWFUL PRACTICES COVERED BY THIS ARTICLE OR THE RULES ADOPTED PURSUANT~~
20 ~~TO THIS ARTICLE, IS NOT RELEVANT TO THE CHARGE THAT IS THE SUBJECT MATTER~~
21 ~~OF THE HEARING OR INVESTIGATION OR DOES NOT DESCRIBE WITH SUFFICIENT~~
22 ~~PARTICULARITY THE PHYSICAL EVIDENCE REQUIRED TO BE PRODUCED. ANY MEMBER~~
23 ~~OF THE BOARD OR ANY AGENT DESIGNATED BY THE BOARD MAY ADMINISTER OATHS OR~~
24 ~~AFFIRMATIONS, EXAMINE WITNESSES AND RECEIVE EVIDENCE.~~

25 ~~2. ANY PERSON APPEARING BEFORE THE BOARD MAY BE REPRESENTED BY~~
26 ~~COUNSEL.~~

27 ~~3. ON APPLICATION BY THE BOARD OR BY THE PERSON SUBPOENAED, THE~~
28 ~~SUPERIOR COURT MAY ISSUE AN ORDER TO EITHER:~~

29 ~~(a) REQUIRE THE SUBPOENAED PERSON TO APPEAR BEFORE THE BOARD OR THE~~
30 ~~DULY AUTHORIZED AGENT TO PRODUCE EVIDENCE RELATING TO THE MATTER UNDER~~
31 ~~INVESTIGATION.~~

32 ~~(b) REVOKE, LIMIT OR MODIFY THE SUBPOENA IF IN THE COURT'S OPINION~~
33 ~~THE EVIDENCE DEMANDED DOES NOT RELATE TO UNLAWFUL PRACTICES COVERED BY~~
34 ~~THIS ARTICLE, IS NOT RELEVANT TO THE CHARGE THAT IS THE SUBJECT MATTER OF~~
35 ~~THE HEARING OR INVESTIGATION OR DOES NOT DESCRIBE WITH SUFFICIENT~~
36 ~~PARTICULARITY THE EVIDENCE WHOSE PRODUCTION IS REQUIRED.}}~~

37 ~~C. Patient records, including clinical records, medical reports,~~
38 ~~laboratory statements and reports, files, films and oral statements~~
39 ~~relating to patient examinations, findings and treatment, that are kept by~~
40 ~~the {{director}} {{BOARD}} pursuant to an investigation are not available~~
41 ~~to the public. The {{director}} {{BOARD}} shall keep confidential the~~
42 ~~names of patients whose records are reviewed during the course of an~~
43 ~~investigation or hearing.~~

44 ~~{{D. THIS SECTION AND ANY OTHER LAW MAKING COMMUNICATIONS BETWEEN A~~
45 ~~LICENSED MIDWIFE AND A LICENSED MIDWIFE'S PATIENT PRIVILEGED DO NOT APPLY~~
46 ~~TO INVESTIGATIONS OR PROCEEDINGS CONDUCTED PURSUANT TO THIS ARTICLE. THE~~
47 ~~BOARD AND ITS EMPLOYEES, AGENTS AND REPRESENTATIVES MUST KEEP IN~~
48 ~~CONFIDENCE THE NAMES OF ANY PATIENTS WHOSE RECORDS ARE REVIEWED DURING THE~~
49 ~~COURSE OF INVESTIGATIONS AND PROCEEDINGS PURSUANT TO THIS ARTICLE.~~

1 E. THE COURT MAY FIND A PERSON WHO DOES NOT COMPLY WITH A SUBPOENA
2 ISSUED PURSUANT TO THIS SECTION IN CONTEMPT OF COURT.}}>>

3 <<Sec. 11. Section 32-1591.08, Arizona Revised Statutes, as
4 transferred and renumbered, is amended to read:

5 32-1591.08. Fees

6 The ~~{{director}}~~ ~~{{BOARD}}~~, by rule, shall establish and collect
7 nonrefundable fees ~~{{FOR THE PURPOSES OF THIS ARTICLE.}}~~ ~~{{that do not~~
8 ~~exceed:~~

9 ~~1. Twenty-five dollars for an initial application.~~

10 ~~2. Fifty dollars for an initial license.~~

11 ~~3. Two hundred fifty dollars for testing.~~

12 ~~4. Fifty dollars for license renewal.~~

13 ~~5. Ten dollars for a duplicate license.}}~~>>

14 Sec. 12. ~~{{Title 36, chapter 6, article 7}}~~ ~~{{Title 32, chapter 14,~~
15 ~~article 5}}~~, Arizona Revised Statutes, ~~{{as transferred and renumbered,}}~~
16 is amended by adding sections ~~{{36-761, 36-762 and 36-763}}~~ ~~{{32-1591.11,~~
17 ~~32-1591.12 and 32-1591.13}}~~, to read:

18 ~~{{36-761.}}~~ ~~{{32-1591.11.}}~~ Prescription drugs; dispensing
19 and administration authority; storage;
20 documentation

21 A. A LICENSED MIDWIFE WHO, IN ADDITION TO THE REQUIREMENTS FOR
22 INITIAL LICENSURE, HAS PROOF OF COMPLETION OF A PHARMACOLOGY COURSE OF AT
23 LEAST EIGHT CONTINUING EDUCATION UNITS FROM A MIDWIFERY EDUCATION
24 ACCREDITATION COUNCIL-ACCREDITED INSTITUTION OR A REGIONALLY ACCREDITED
25 INSTITUTION MAY DISPENSE AND ADMINISTER THE FOLLOWING MEDICATIONS,
26 THERAPIES AND DEVICES WITH THE FOLLOWING LIMITATIONS:

27 1. ANTIBIOTICS RELATED TO GROUP B STREPTOCOCCUS PROPHYLAXIS
28 CONSISTENT WITH THE UNITED STATES CENTERS FOR DISEASE CONTROL AND
29 PREVENTION GUIDELINES OR OTHER CURRENT EVIDENCE-BASED GUIDELINES.

30 2. THE FOLLOWING ANTIHEMORRHAGIC MEDICATIONS FOR PREVENTING AND
31 TREATING POSTPARTUM HEMORRHAGE AS DEFINED BY THE AMERICAN COLLEGE OF
32 OBSTETRICIANS AND GYNECOLOGISTS:

33 (a) OXYTOCIN FOR PREVENTING UTERINE ATONY DURING OR IMMEDIATELY
34 FOLLOWING THE THIRD STAGE OF LABOR ACCORDING TO CURRENT EVIDENCE-BASED
35 STANDARDS OF CARE.

36 (b) METHYLERGONOVINE.

37 (c) CARBOPROST TROMETHAMINE.

38 (d) MISOPROSTOL.

39 (e) TRANEXAMIC ACID.

40 A LICENSED MIDWIFE MAY NOT USE THE ANTIHEMORRHAGIC MEDICATIONS SPECIFIED
41 IN THIS PARAGRAPH TO INDUCE OR AUGMENT LABOR. THE LICENSED MIDWIFE SHALL
42 INITIATE A TRANSFER OF CARE IF AN ANTIHEMORRHAGIC MEDICATION IS
43 ADMINISTERED FOR MANAGING HEMORRHAGE.

44 3. PROPHYLACTIC OPHTHALMIC MEDICATIONS FOR NEWBORN EYE CARE.

45 4. INTRAVENOUS FLUIDS FOR THE FOLLOWING:

46 (a) MEDICATION ADMINISTRATION.

47 (b) ROUTINE FLUID ADMINISTRATION.

48 (c) TREATING HYPOVOLEMIC SHOCK WHILE AWAITING EMERGENCY MEDICAL
49 SERVICE.

1 5. VITAMIN K PROPHYLAXIS FOR NEWBORNS.
2 6. RHO IMMUNE GLOBULIN.
3 7. TOPICAL, INTRAMUSCULAR OR SUBCUTANEOUS LOCAL ANESTHETICS FOR
4 POSTPARTUM REPAIR OF FIRST AND SECOND DEGREE TEARS, LACERATIONS OR
5 EPISIOTOMIES. THIS PARAGRAPH DOES NOT INCLUDE ANY SCHEDULE I CONTROLLED
6 SUBSTANCE.
7 8. OXYGEN AND COMPRESSED AIR FOR FETAL OR MATERNAL DISTRESS AND
8 INFANT RESUSCITATION.
9 9. EPINEPHRINE FOR NEONATAL RESUSCITATION CONSISTENT WITH THE
10 NEONATAL RESUSCITATION PROGRAM GUIDELINES AND TO TREAT MATERNAL ALLERGIC
11 REACTIONS.
12 10. GLUCOSE GEL ADMINISTERED ORALLY FOR NEONATAL HYPOGLYCEMIA.
13 11. VITAMINS AND MINERALS FOR CORRECTING ELECTROLYTE IMBALANCES,
14 INCLUDING B VITAMINS, CALCIUM, MAGNESIUM, DIETARY SUPPLEMENTS, HOMEOPATHIC
15 REMEDIES, PLANT SUBSTANCES THAT ARE NOT DESIGNATED AS PRESCRIPTION DRUGS
16 OR CONTROLLED SUBSTANCES, AND OVER-THE-COUNTER MEDICATIONS.
17 12. RESUSCITATION SUPPLIES AND EQUIPMENT ACCORDING TO THE CURRENT
18 NEONATAL RESUSCITATION PROGRAM ALGORITHM.
19 13. MEDICAL SUPPLIES AND EQUIPMENT NEEDED TO ADMINISTER THE
20 MEDICATIONS PRESCRIBED IN THIS SUBSECTION.
21 14. ELECTRONIC BREAST PUMPS, GLUCOSE MONITORS, COMPRESSION
22 STOCKINGS AND PREGNANCY SUPPORT BELTS OR DEVICES.
23 B. ~~[A LICENSED MIDWIFE MAY ADMINISTER OTHER PRESCRIPTION~~
24 ~~MEDICATIONS AS PRESCRIBED BY A PHYSICIAN WHO IS LICENSED PURSUANT TO TITLE~~
25 ~~32, CHAPTER 13, 14 OR 17, A REGISTERED NURSE PRACTITIONER WHO IS LICENSED~~
26 ~~PURSUANT TO TITLE 32, CHAPTER 15 OR A PHYSICIAN ASSISTANT WHO IS LICENSED~~
27 ~~PURSUANT TO TITLE 32, CHAPTER 25.]~~ A PHARMACIST WHO DISPENSES PRESCRIPTION
28 MEDICATIONS PRESCRIBED PURSUANT TO THIS SUBSECTION TO A LICENSED MIDWIFE
29 IS NOT LIABLE FOR ANY ADVERSE REACTION THAT IS CAUSED BY THE LICENSED
30 MIDWIFE'S METHOD OF USE.
31 C. A LICENSED MIDWIFE MAY LAWFULLY OBTAIN, TRANSPORT, ADMINISTER
32 AND POSSESS ADEQUATE QUANTITIES OF THE MEDICATIONS PRESCRIBED IN
33 SUBSECTION A OF THIS SECTION AND THE EQUIPMENT NORMALLY REQUIRED TO
34 ADMINISTER THOSE MEDICATIONS. THE LICENSED MIDWIFE SHALL:
35 1. STORE THE MEDICATIONS PRESCRIBED IN SUBSECTION A OF THIS SECTION
36 AS DIRECTED BY THE MANUFACTURER. A LICENSED MIDWIFE MAY NOT ADMINISTER A
37 MEDICATION TO ANY PERSON AFTER THE LISTED EXPIRATION DATE.
38 2. RECORD IN THE PATIENT'S CHART EACH USE OF MEDICATION AND THE
39 MEDICATION'S LOT NUMBER AND EXPIRATION DATE.
40 ~~{{36-762.}}~~ {{32-1591.12.}} Arizona midwifery advisory
41 committee; membership; duties; sentinel events;
42 definition
43 A. THE ARIZONA MIDWIFERY ADVISORY COMMITTEE IS ESTABLISHED IN THE
44 ~~{{DEPARTMENT}}~~ {{BOARD}} TO ASSIST IN EXAMINING APPLICANTS FOR A MIDWIFERY
45 LICENSE, IF REQUESTED, TO COLLABORATE WITH AND ASSIST THE ~~{{DIRECTOR}}~~
46 {{BOARD}} IN DISCIPLINARY MATTERS, IF REQUESTED, AND TO PERFORM ANY OTHER
47 DUTIES ~~{{PRESCRIBED IN THIS ARTICLE}}~~ {{AT THE DIRECTION OF THE BOARD}}.

1 B. THE ~~{{DIRECTOR}}~~ {{BOARD}} SHALL APPOINT THE MEMBERS OF THE
2 ADVISORY COMMITTEE, WHICH SHALL BE COMPOSED OF NOT MORE THAN ELEVEN OF THE
3 FOLLOWING MEMBERS:
4 1. AT LEAST FIVE LICENSED MIDWIVES.
5 2. TWO CERTIFIED NURSE MIDWIVES WHO ARE LICENSED PURSUANT TO
6 ~~{{TITLE 32,}}~~ CHAPTER 15 {{OF THIS TITLE}}.
7 3. TWO PHYSICIANS WHO ARE LICENSED PURSUANT TO ~~{{TITLE 32,}}~~ {{THIS
8 CHAPTER OR}} CHAPTER 13~~{{, 14}}~~ OR 17 {{OF THIS TITLE}}~~[.]~~ ~~[AND WHO ARE~~
9 ~~BOARD-CERTIFIED IN OBSTETRICS, PEDIATRICS OR FAMILY MEDICINE]~~ [ONE OF WHOM
10 IS BOARD-CERTIFIED IN OBSTETRICS AND ONE OF WHOM IS BOARD-CERTIFIED IN
11 PEDIATRICS]. THE ~~{{DIRECTOR}}~~ {{BOARD}} SHALL SOLICIT PHYSICIAN
12 APPLICATIONS FROM STATE MEDICAL SOCIETIES AND ASSOCIATIONS.
13 4. ONE CONSUMER OF MIDWIFERY CARE.
14 C. ADVISORY COMMITTEE MEMBERS ARE NOT ELIGIBLE FOR COMPENSATION OR
15 REIMBURSEMENT OF EXPENSES.
16 D. THE ADVISORY COMMITTEE SHALL MEET AT LEAST FOUR TIMES EACH YEAR,
17 ONCE PER QUARTER.
18 ~~[E. THE ADVISORY COMMITTEE SHALL MAKE RECOMMENDATIONS TO THE~~
19 ~~DIRECTOR WHEN ADOPTING OR AMENDING RULES RELATING TO THE MIDWIFERY SCOPE~~
20 ~~OF PRACTICE.]~~
21 ~~F. A LICENSED MIDWIFE WHO IS INTERESTED IN MODIFYING THE MIDWIFERY~~
22 ~~SCOPE OF PRACTICE MUST SUBMIT A REPORT TO THE ADVISORY COMMITTEE THAT~~
23 ~~CONTAINS AT LEAST THE FOLLOWING:~~
24 ~~1. A DESCRIPTION OF THE ISSUE AND WHY AN ADDITION TO THE MIDWIFERY~~
25 ~~SCOPE OF PRACTICE IS NECESSARY, INCLUDING THE EXTENT TO WHICH CONSUMERS~~
26 ~~NEED AND WILL BENEFIT FROM A LICENSED MIDWIFE'S ABILITY TO PROVIDE THIS~~
27 ~~ADDITIONAL HEALTH CARE SERVICE.]~~
28 ~~2. THE AVAILABLE EVIDENCE-BASED RESEARCH THAT DEMONSTRATES THAT~~
29 ~~LICENSED MIDWIVES ARE COMPETENT TO PERFORM THE PROPOSED HEALTH CARE~~
30 ~~SERVICE.]~~
31 ~~3. THE EXTENT TO WHICH A CHANGE IN THE MIDWIFERY SCOPE OF PRACTICE~~
32 ~~MAY HARM THE PUBLIC, INCLUDING THE EXTENT TO WHICH A CHANGE IN THE SCOPE~~
33 ~~OF PRACTICE WILL RESTRICT ENTRY INTO THE PRACTICE OF MIDWIFERY.]~~
34 ~~G. IF A MAJORITY OF A QUORUM OF THE ADVISORY COMMITTEE MEMBERS~~
35 ~~VOTES TO APPROVE A CHANGE IN THE MIDWIFERY SCOPE OF PRACTICE PURSUANT TO~~
36 ~~SUBSECTION F OF THIS SECTION, THE ADVISORY COMMITTEE SHALL PROVIDE THE~~
37 ~~DIRECTOR WITH ITS RECOMMENDATIONS FOR A POSSIBLE RULE CHANGE.]~~
38 ~~[H.]~~ [E.] {{AT THE DIRECTION OF THE BOARD.}} THE ADVISORY
39 COMMITTEE SHALL CONDUCT A REVIEW OF SENTINEL EVENTS OCCURRING DURING THE
40 COURSE OF PRENATAL, INTRAPARTUM OR POSTPARTUM CARE PROVIDED BY LICENSED
41 MIDWIVES IN THIS STATE.
42 ~~[I.]~~ [E.] {{AT THE DIRECTION OF THE BOARD.}} THE ADVISORY
43 COMMITTEE MAY CONVENE {{AN}} EMERGENCY {{MEETINGS}} {{MEETING}} WHEN A
44 CASE OR SENTINEL EVENT REQUIRES TIMELY REVIEW OR ACTION TO PROTECT THE
45 PUBLIC HEALTH AND SAFETY.
46 ~~[J.]~~ [G.] FOLLOWING THE REVIEW OF A SENTINEL EVENT {{PURSUANT TO
47 SUBSECTION E OR F OF THIS SECTION}}, THE ADVISORY COMMITTEE SHALL MAKE
48 RECOMMENDATIONS TO THE {{DEPARTMENT}} {{BOARD}} REGARDING WHETHER THE CARE
49 PROVIDED WAS:

1 1. CONSISTENT WITH COMMUNITY STANDARDS.
2 2. CONSISTENT WITH COMMUNITY STANDARDS BUT OUTSIDE THE SCOPE OF
3 PRACTICE ~~[AS DEFINED BY THE DEPARTMENT IN RULE]~~.
4 3. OUTSIDE OF COMMUNITY STANDARDS AND REQUIRING CORRECTIVE ACTION.
5 ~~[K.]~~ [H.] FOR CARE DETERMINED TO BE OUTSIDE OF COMMUNITY STANDARDS
6 ~~[OR THE SCOPE OF PRACTICE]~~ UNDER SUBSECTION ~~[J-]~~ [G] OF THIS SECTION, THE
7 ADVISORY COMMITTEE MAY RECOMMEND ONE OR MORE OF THE FOLLOWING TO THE
8 ~~{{DEPARTMENT}}~~ {{BOARD}}:
9 1. ADDITIONAL CONTINUING EDUCATION REQUIREMENTS.
10 2. MENTORING OR SUPERVISED PRACTICE.
11 3. ADMINISTRATIVE CIVIL PENALTIES.
12 4. RESTRICTION OR SUSPENSION OF A LICENSE.
13 5. REVOCATION OF A LICENSE.
14 ~~[L.]~~ [I.] {{AT THE DIRECTION OF THE BOARD.}} THE ADVISORY
15 COMMITTEE SHALL REVIEW MIDWIFE REPORTS SUBMITTED PURSUANT TO SECTION
16 ~~{{36-763}}~~ {{32-1591.13}} AND MAY RECOMMEND MODIFICATIONS TO REPORTING
17 REQUIREMENTS TO THE ~~{{DEPARTMENT}}~~ {{BOARD}} TO SUPPORT QUALITY
18 IMPROVEMENT AND PATIENT SAFETY.
19 ~~[M.]~~ [J.] FOR THE PURPOSES OF THIS SECTION, "SENTINEL EVENT":
20 1. MEANS AN UNEXPECTED, SERIOUS PATIENT SAFETY INCIDENT RESULTING
21 IN DEATH, PERMANENT HARM OR A SIGNIFICANT RISK OF HARM.
22 2. INCLUDES BOTH:
23 (a) MATERNAL SENTINEL EVENTS, INCLUDING:
24 (i) MATERNAL ~~[DEATH]~~ [DEATHS DURING THE PREGNANCY THROUGH THIRTY
25 DAYS POSTPARTUM].
26 (ii) MATERNAL INTENSIVE CARE UNIT ADMISSION [IN THE FIRST ONE
27 HUNDRED TWENTY HOURS POSTPARTUM].
28 (iii) UTERINE RUPTURE.
29 (iv) POSTPARTUM HEMORRHAGE REQUIRING A BLOOD TRANSFUSION.
30 (v) SHOULDER DYSTOCIA WITH BRACHIAL PLEXUS INJURY.
31 (b) NEONATAL SENTINEL EVENTS, INCLUDING:
32 [(i) NEONATAL DEATHS IN THE FIRST THIRTY DAYS OF LIFE.]
33 ~~[(i)]~~ [(ii)] NEONATAL INTENSIVE CARE UNIT ADMISSION WITHIN
34 ~~[SEVENTY-TWO]~~ [ONE HUNDRED TWENTY] HOURS AFTER BIRTH, NOT INCLUDING
35 OBSERVATION-ONLY ADMISSIONS OR ADMISSIONS FOR CONGENITAL ANOMALIES.
36 ~~[(ii)]~~ [(iii)] A BIRTH WEIGHT OF LESS THAN TWO THOUSAND FIVE
37 HUNDRED GRAMS.
38 ~~[(iii)]~~ [(iv)] AN APGAR SCORE OF LESS THAN SEVEN AT FIVE MINUTES.
39 ~~[(iv)]~~ [(v)] RESPIRATORY DISTRESS REQUIRING PROLONGED VENTILATION.
40 ~~{{36-763.}}~~ {{32-1591.13.}} Disclosure; reporting
41 requirements; definitions
42 A. AT THE INITIATION OF CARE, EACH LICENSED MIDWIFE SHALL DISCLOSE
43 TO EACH PATIENT WHETHER THE LICENSED MIDWIFE MAINTAINS PROFESSIONAL
44 LIABILITY INSURANCE. THIS DISCLOSURE SHALL BE INCLUDED IN THE INFORMED
45 CONSENT DOCUMENT AND ACKNOWLEDGED BY THE PATIENT'S SIGNATURE.
46 B. ON OR BEFORE JANUARY 31 EACH YEAR, EACH LICENSED MIDWIFE SHALL
47 FILE A REPORT WITH THE ~~{{DEPARTMENT}}~~ {{BOARD, OR IF DELEGATED BY THE
48 BOARD, AT THE DIRECTION OF THE DIRECTOR}}, IN A FORMAT PRESCRIBED BY THE
49 ~~{{DEPARTMENT}}~~ {{BOARD}}, THE FOLLOWING INFORMATION, NOT INCLUDING ANY

1 INDIVIDUALLY IDENTIFIABLE HEALTH INFORMATION OF A PATIENT, FOR THE
2 PRECEDING CALENDAR YEAR:

3 1. THE NUMBER OF WOMEN FOR WHOM THE LICENSED MIDWIFE PROVIDED CARE.

4 2. THE NUMBER OF DELIVERIES THE LICENSED MIDWIFE ATTENDED AS
5 PRIMARY MIDWIFE.

6 3. THE NUMBER, REASON FOR AND OUTCOME OF EACH TRANSFER OR TRANSPORT
7 OF A PATIENT IN THE ANTEPARTUM, INTRAPARTUM OR IMMEDIATE POSTPARTUM
8 PERIODS.

9 4. THE NUMBER OF PERINATAL DEATHS, INCLUDING ~~[THE CAUSE OF DEATH~~
10 ~~AND A DESCRIPTION OF THE CIRCUMSTANCE]~~ [BOTH]:

11 (a) MATERNAL DEATHS OCCURRING DURING PREGNANCY AND THROUGH THE
12 FIRST MONTH POSTPARTUM.

13 (b) NEONATAL DEATHS OCCURRING THROUGH THE FIRST MONTH OF LIFE].

14 [5. FOR EACH DEATH REPORTED PURSUANT TO PARAGRAPH 4 OF THIS
15 SUBSECTION, THE CAUSE OF DEATH, IF KNOWN, AND A DESCRIPTION OF THE
16 CIRCUMSTANCES SURROUNDING THE DEATH.]

17 ~~[5.]~~ [6.] THE NUMBER AND OUTCOME OF BREECH BIRTHS AND VAGINAL
18 BIRTHS AFTER CESAREAN.

19 ~~[6.]~~ [7.] THE NUMBER OF BIRTHS THAT OCCURRED MORE THAN TWENTY-FIVE
20 MILES FROM A HOSPITAL THAT PROVIDES OBSTETRICS SERVICES.

21 ~~[7.]~~ [8.] THE NUMBER OF FETAL DEATHS AFTER TWENTY WEEKS'
22 GESTATION.

23 ~~[8.]~~ [9.] THE LICENSED MIDWIFE'S FULL NAME, LICENSE NUMBER AND
24 COUNTY.

25 C. IN ADDITION TO THE REPORTING REQUIRED IN SUBSECTION B OF THIS
26 SECTION, A LICENSED MIDWIFE SHALL REPORT TO THE ~~{{DEPARTMENT}}~~ ~~{{BOARD}}~~:

27 1. A PERINATAL MORTALITY WITHIN SEVENTY-TWO HOURS AFTER THE DEATH.

28 2. A SENTINEL EVENT WITHIN FOURTEEN DAYS AFTER THE EVENT.

29 D. THE INFORMATION REPORTED TO THE ~~{{DEPARTMENT}}~~ ~~{{BOARD}}~~
30 PURSUANT TO SUBSECTIONS B AND C OF THIS SECTION MAY BE INSPECTED, COPIED,
31 OBTAINED OR PROVIDED TO THE ADVISORY COMMITTEE FOR RESEARCH AND EVIDENCE.

32 E. THE REPORT REQUIRED BY SUBSECTION B OF THIS SECTION REPLACES THE
33 REPORT REQUIRED BY EACH LICENSED MIDWIFE FOLLOWING THE TERMINATION OF CARE
34 FOR EACH PATIENT.

35 [F. ON OR BEFORE SEPTEMBER 1 OF EACH YEAR, THE DATA THAT IS
36 COLLECTED IN THE REPORTS REQUIRED BY SUBSECTION B OF THIS SECTION SHALL BE
37 COMPILED AND SHARED WITH THE SPEAKER OF THE HOUSE OF REPRESENTATIVES, THE
38 PRESIDENT OF THE SENATE AND THE GOVERNOR AND POSTED ON THE
39 ~~{{DEPARTMENT'S}}~~ ~~{{BOARD'S}}~~ PUBLIC WEBSITE.]

40 ~~[F.]~~ [G.] FOR THE PURPOSES OF THIS SECTION:

41 1. "INDIVIDUALLY IDENTIFIABLE HEALTH INFORMATION" HAS THE SAME
42 MEANING PRESCRIBED IN SECTION 36-3801.

43 2. "SENTINEL EVENT" HAS THE SAME MEANING PRESCRIBED IN SECTION
44 ~~{{36-762}}~~ ~~{{32-1591.12}}~~.

1 ~~Sec.~~ Sec. 13. Section 32-3101, Arizona Revised Statutes, is amended to
2 read:

3 32-3101. Definitions

4 In this chapter, unless the context otherwise requires:

5 1. "Certification" means a voluntary process by which a regulatory
6 entity grants recognition to an individual who has met certain
7 prerequisite qualifications specified by that regulatory entity and who
8 may assume or use the word "certified" in a title or designation to
9 perform prescribed health professional tasks.

10 2. "Grandfather clause" means a provision that is applicable to
11 practitioners who are actively engaged in the regulated health profession
12 before the effective date of a law and that exempts the practitioners from
13 meeting the prerequisite qualifications set forth in the law to perform
14 prescribed occupational tasks.

15 3. "Health professional group" means any health professional group
16 or organization, any individual or any other interested party that
17 proposes that any health professional group that is not presently
18 regulated be regulated.

19 4. "Health professions" means professions that are regulated
20 pursuant to chapter 7, 8, 11, 13, 14, 15, 15.1, 16, 17, 18, 19, 19.1, 21,
21 25, 28, 29, 33, 34, 35, 39 or 41 of this title~~{{, title 36, chapter 6,~~
22 ~~article 7}}~~ or title 36, chapter 17.

23 5. "Inspection" means the periodic examination of practitioners by
24 a state agency in order to ascertain whether the practitioners' occupation
25 is being carried out in a fashion consistent with the public health,
26 safety and welfare.

27 6. "Licensure" or "license" means an individual, nontransferable
28 authorization to carry on a health activity that would otherwise be
29 unlawful in this state in the absence of the permission and that is based
30 on qualifications that include graduation from an accredited or approved
31 program and acceptable performance on a qualifying examination or a series
32 of examinations.

33 7. "Practitioner" means an individual who has achieved knowledge
34 and skill by practice and who is actively engaged in a specified health
35 profession.

36 8. "Public member" means an individual who is not and never has
37 been a member or the spouse of a member of the health profession being
38 regulated and who does not have and never has had a material financial
39 interest in either rendering the health professional service being
40 regulated or an activity directly related to the profession being
41 regulated.

42 9. "Registration" means the formal notification that, before
43 rendering services, a practitioner must submit to a state agency setting
44 forth the name and address of the practitioner, the location, nature and
45 operation of the health activity to be practiced and, if required by a
46 regulatory entity, a description of the service to be provided.

1 10. "Regulatory entity" means any board, commission, agency or
2 department of this state that regulates one or more health professions in
3 this state.

4 11. "State agency" means any department, board, commission or
5 agency of this state. >>

6 <<Sec. 14. Section 32-3201, Arizona Revised Statutes, is amended to
7 read:

8 32-3201. Definitions

9 In this chapter, unless the context otherwise requires:

10 ~~{{2.}}~~ ~~{{1.}}~~ "Health professional" means a person who is certified
11 or licensed pursuant to chapter 7, 8, 11, 13, 14, 15, 15.1, 16, 17, 18,
12 19, 19.1, 21, 25, 28, 29, 33, 34, 35, 39, 41 or 42 of this title, title
13 36, chapter 4, article 6~~{{, title 36, chapter 6, article 7}}~~ or title 36,
14 chapter 17.

15 ~~{{1.}}~~ ~~{{2.}}~~ "Health profession regulatory board" means any board
16 that regulates one or more health professionals in this state.

17 3. "Medical ~~{{record}}~~ ~~{{RECORDS}}~~" has the same meaning prescribed
18 in section 12-2291 but does not include prescription orders. >>

19 <<Sec. 15. Section 36-301, Arizona Revised Statutes, is amended to
20 read:

21 36-301. Definitions

22 In this chapter, unless the context otherwise requires:

23 1. "Administrative order" means a written decision issued by an
24 administrative law judge or quasi-judicial entity.

25 2. "Amend" means to make a change, other than a correction, to a
26 registered certificate by adding, deleting or substituting information on
27 that certificate.

28 3. "Birth" or "live birth" means the complete expulsion or
29 extraction of an unborn child from the child's mother, irrespective of the
30 duration of the pregnancy, that shows evidence of life, with or without a
31 cut umbilical cord or an attached placenta, such as breathing, heartbeat,
32 umbilical cord pulsation or definite voluntary muscle movement after
33 expulsion or extraction of the unborn child.

34 4. "Certificate" means a record that documents a birth or death.

35 5. "Certified copy" means a written reproduction of a registered
36 certificate that a local registrar, a deputy local registrar or the state
37 registrar has authenticated as a true and exact written reproduction of a
38 registered certificate.

39 6. "Correction" means a change made to a registered certificate
40 because of a typographical error, including misspelling and missing or
41 transposed letters or numbers.

42 7. "Court order" means a written decision issued by:

43 (a) The superior court, an appellate court or the supreme court or
44 an equivalent court in another state.

45 (b) A commissioner or judicial hearing officer of the superior
46 court.

47 (c) A judge of a tribal court in this state.

1 8. "Current care" means that a health care provider has examined,
2 treated or provided care for a person for a chronic or acute condition
3 within eighteen months preceding that person's death. Current care does
4 not include services provided in connection with a single event of
5 emergency or urgent care. For the purposes of this paragraph, "treated"
6 includes prescribing medication.

7 9. "Custody" means legal authority to act on behalf of a child.

8 10. "Department" means the department of health services.

9 11. "Electronic" means technology that has electrical, digital,
10 magnetic, wireless, optical or electromagnetic capabilities or technology
11 with similar capabilities.

12 12. "Evidentiary document" means written information used to prove
13 the fact for which the document is presented.

14 13. "Family member" means:

15 (a) A person's spouse, natural or adopted offspring, father,
16 mother, grandparent, grandchild to any degree, brother, sister, aunt,
17 uncle or first or second cousin.

18 (b) The natural or adopted offspring, father, mother, grandparent,
19 grandchild to any degree, brother, sister, aunt, uncle or first or second
20 cousin of the person's spouse.

21 14. "Fetal death" means the cessation of life before the complete
22 expulsion or extraction of an unborn child from the child's mother that is
23 evidenced by the absence of breathing, heartbeat, umbilical cord pulsation
24 or definite voluntary muscle movement after expulsion or extraction.

25 15. "Final disposition" means the interment, cremation, removal
26 from this state or other disposition of human remains.

27 16. "Foundling" means:

28 (a) A newborn infant ~~{{WHO IS}}~~ left with a safe haven provider
29 pursuant to section 13-3623.01.

30 (b) A child whose father and mother cannot be determined.

31 17. "Funeral establishment" has the same meaning prescribed in
32 section 32-1301.

33 18. "Health care institution" has the same meaning prescribed in
34 section 36-401.

35 19. "Health care provider" means:

36 (a) A physician ~~{{WHO IS}}~~ licensed pursuant to title 32, chapter
37 13 or 17.

38 (b) A doctor of naturopathic medicine ~~{{WHO IS}}~~ licensed pursuant
39 to title 32, chapter 14.

40 (c) A midwife ~~{{WHO IS}}~~ licensed pursuant to ~~{{chapter 6, article~~
41 ~~7 of this}}~~ title ~~{{32, CHAPTER 14, ARTICLE 5}}~~.

42 (d) A nurse midwife ~~{{WHO IS}}~~ certified pursuant to title 32,
43 chapter 15.

44 (e) A nurse practitioner ~~{{WHO IS}}~~ licensed and certified pursuant
45 to title 32, chapter 15.

46 (f) A physician assistant ~~{{WHO IS}}~~ licensed pursuant to title 32,
47 chapter 25.

1 (g) A health care provider who is licensed or certified by another
2 state or jurisdiction of the United States and who works in a federal
3 health care facility.

4 20. "Human remains" means a lifeless human body or parts of a human
5 body that permit a reasonable inference that death occurred.

6 21. "Issue" means:

7 (a) To provide a copy of a registered certificate.

8 (b) An action taken by a court of competent jurisdiction,
9 administrative law judge or quasi-judicial entity.

10 22. "Legal age" means a person who is at least eighteen years of
11 age or who is emancipated by a court order.

12 23. "Medical certification of death" means the opinion of the
13 health care provider who signs the certificate of probable or presumed
14 cause of death that complies with rules adopted by the state registrar of
15 vital records and that is based on any of the following that is reasonably
16 available:

17 (a) Personal examination.

18 (b) Medical history.

19 (c) Medical records.

20 (d) Other reasonable forms of evidence.

21 24. "Medical examiner" means a medical examiner or alternate
22 medical examiner as defined in section 11-591.

23 25. "Name" means a designation that identifies a person, including
24 a first name, middle name, last name or suffix.

25 26. "Natural causes" means those causes that are due solely or
26 nearly entirely to disease or the aging process.

27 27. "Presumptive death" means a determination by a court that a
28 death has occurred or is presumed to have occurred but the human remains
29 have not been located or recovered.

30 28. "Register" means to assign an official state number and to
31 incorporate into the state registrar's official records.

32 29. "Responsible person" means a person listed in section 36-831.

33 30. "Seal" means to bar from access.

34 31. "Submit" means to present, physically or electronically, a
35 certificate, evidentiary document or form provided for in this chapter to
36 a local registrar, a deputy local registrar or the state registrar.

37 32. "System of public health statistics" means the processes and
38 procedures for:

39 (a) Tabulating, analyzing and publishing public health information
40 derived from vital records data and other sources authorized pursuant to
41 section 36-125.05 or section 36-132, subsection A, paragraph 3.

42 (b) Performing other activities related to public health
43 information.

44 33. "System of vital records" means the statewide processes and
45 procedures for:

46 (a) Electronically or physically collecting, creating, registering,
47 maintaining, copying and preserving vital records.

1 (b) Preparing and issuing certified and noncertified copies of
2 vital records.

3 (c) Performing other activities related to vital records.

4 34. "Unborn child" has the same meaning prescribed in section
5 36-2151.

6 35. "Vital record" means a registered birth certificate or a
7 registered death certificate.>>

8 <<Sec. 16. Section 36-422, Arizona Revised Statutes, is amended to
9 read:

10 36-422. Application for license; notification of proposed
11 change in status; joint licenses; definitions

12 A. A person who wishes to apply for a license to operate a health
13 care institution pursuant to this chapter shall submit to the department
14 all of the following:

15 1. An application on a written or electronic form that is
16 prescribed, prepared and furnished by the department and that contains all
17 of the following:

18 (a) The name and location of the health care institution.

19 (b) Whether the health care institution is to be operated as a
20 proprietary or nonproprietary institution.

21 (c) The name of the governing authority. The applicant shall be
22 the governing authority having the operative ownership of, or the
23 governmental agency charged with the administration of, the health care
24 institution sought to be licensed. If the applicant is a partnership that
25 is not a limited partnership, the partners shall apply jointly, and the
26 partners are jointly the governing authority for purposes of this article.

27 (d) The name and business or residential address of each
28 controlling person and an affirmation that none of the controlling persons
29 has been denied a license or certificate by a health profession regulatory
30 board pursuant to title 32 or by a state agency pursuant to ~~{{chapter 6,~~
31 ~~article 7 or}}~~ chapter 17 of this title or a license to operate a health
32 care institution in this state or another state or has had a license or
33 certificate issued by a health profession regulatory board pursuant to
34 title 32 or issued by a state agency pursuant to ~~{{chapter 6, article 7~~
35 ~~or}}~~ chapter 17 of this title or a license to operate a health care
36 institution revoked. If a controlling person has been denied a license or
37 certificate by a health profession regulatory board pursuant to title 32
38 or by a state agency pursuant to ~~{{chapter 6, article 7 or}}~~ chapter 17 of
39 this title or a license to operate a health care institution in this state
40 or another state or has had a health care professional license or a
41 license to operate a health care institution revoked, the controlling
42 person shall include in the application a comprehensive description of the
43 circumstances for the denial or the revocation.

44 (e) The class or subclass of health care institution to be
45 established or operated.

46 (f) The types and extent of the health care services to be
47 provided, including emergency services, community health services and
48 services to indigent patients.

1 (g) The name and qualifications of the chief administrative officer
2 implementing direction in that specific health care institution.

3 (h) Other pertinent information required by the department for the
4 proper administration of this chapter and department rules.

5 2. The attestation required by section 36-421, subsection A.

6 3. The applicable application fee.

7 B. An application submitted pursuant to this section shall contain
8 the written or electronic signature of:

9 1. If the applicant is an individual, the owner of the health care
10 institution.

11 2. If the applicant is a partnership, limited liability company or
12 corporation, two of the officers of the corporation or managing members of
13 the partnership or limited liability company or the sole member of the
14 limited liability company if it has only one member.

15 3. If the applicant is a governmental unit, the head of the
16 governmental unit.

17 C. An application for licensure shall be submitted at least sixty
18 but not more than one hundred twenty days before the anticipated date of
19 operation. An application for a substantial compliance survey submitted
20 pursuant to section 36-425, subsection G shall be submitted at least
21 thirty days before the date on which the substantial compliance survey is
22 requested.

23 D. If a current licensee intends to terminate the operation of a
24 licensed health care institution or if a change of ownership is planned,
25 the current licensee shall notify the director in writing at least thirty
26 days before the termination of operation or change in ownership is to take
27 place. The current licensee is responsible for preventing any
28 interruption of services required to sustain the life, health and safety
29 of the patients or residents. A new owner shall not begin operating the
30 health care institution until the director issues a license to the new
31 owner.

32 E. A licensed health care institution for which operations have not
33 been terminated for more than thirty days may be relicensed pursuant to
34 the codes and standards for architectural plans and specifications that
35 were applicable under its most recent license.

36 F. If a person operates a hospital in a county with a population of
37 more than five hundred thousand persons in a setting that includes
38 satellite facilities of the hospital that are located separately from the
39 main hospital building, the department at the request of the applicant or
40 licensee shall issue a single group license to the hospital and its
41 designated satellite facilities located within one-half mile of the main
42 hospital building if all of the facilities meet or exceed department
43 licensure requirements for the designated facilities. At the request of
44 the applicant or licensee, the department shall also issue a single group
45 license that includes the hospital and its designated satellite facilities
46 that are located farther than one-half mile from the main hospital
47 building if all of these facilities meet or exceed applicable department
48 licensure requirements. Each facility included under a single group
49 license is subject to the department's licensure requirements that are

1 applicable to that category of facility. Subject to compliance with
2 applicable licensure or accreditation requirements, the department shall
3 reissue individual licenses for the facility of a hospital located in
4 separate buildings from the main hospital building when requested by the
5 hospital. This subsection does not apply to nursing care institutions and
6 residential care institutions. The department is not limited in
7 conducting inspections of an accredited health care institution to ensure
8 that the institution meets department licensure requirements. If a person
9 operates a hospital in a county with a population of five hundred thousand
10 persons or less in a setting that includes satellite facilities of the
11 hospital that are located separately from the main hospital building, the
12 department at the request of the applicant or licensee shall issue a
13 single group license to the hospital and its designated satellite
14 facilities located within thirty-five miles of the main hospital building
15 if all of the facilities meet or exceed department licensure requirements
16 for the designated facilities. At the request of the applicant or
17 licensee, the department shall also issue a single group license that
18 includes the hospital and its designated satellite facilities that are
19 located farther than thirty-five miles from the main hospital building if
20 all of these facilities meet or exceed applicable department licensure
21 requirements.

22 G. If a county with a population of more than one million persons
23 or a special health care district in a county with a population of more
24 than one million persons operates an accredited hospital that includes the
25 hospital's accredited facilities that are located separately from the main
26 hospital building and the accrediting body's standards as applied to all
27 facilities meet or exceed the department's licensure requirements, the
28 department shall issue a single license to the hospital and its facilities
29 if requested to do so by the hospital. If a hospital complies with
30 applicable licensure or accreditation requirements, the department shall
31 reissue individual licenses for each hospital facility that is located in
32 a separate building from the main hospital building if requested to do so
33 by the hospital. This subsection does not limit the department's duty to
34 inspect a health care institution to determine its compliance with
35 department licensure standards. This subsection does not apply to nursing
36 care institutions and residential care institutions.

37 H. An applicant or licensee must notify the department within
38 thirty days after any change regarding a controlling person and provide
39 the information and affirmation required pursuant to subsection A,
40 paragraph 1, subdivision (d) of this section.

41 I. A behavioral health residential facility that provides services
42 to children must notify the department within thirty days after the
43 facility begins contracting exclusively with the federal government,
44 receives only federal monies and does not contract with this state.

45 J. This section does not limit the application of federal laws and
46 regulations to an applicant or licensee that is certified as a medicare or
47 an Arizona health care cost containment system provider under federal law.

48 K. Except for an outpatient treatment center that provides dialysis
49 services or abortion procedures or that is exempt from licensure pursuant

1 to section 36-402, subsection A, paragraph 12, a person wishing to begin
2 operating an outpatient treatment center before a licensing inspection is
3 completed shall submit all of the following:

4 1. The license application required pursuant to this section.

5 2. All applicable application and license fees.

6 3. A written request for a temporary license that includes:

7 (a) The anticipated date of operation.

8 (b) An attestation signed by the applicant that the applicant and
9 the facility comply with and will continue to comply with the applicable
10 licensing statutes and rules.

11 L. Within seven days after the department's receipt of the items
12 required in subsection K of this section, but not before the anticipated
13 operation date submitted pursuant to subsection C of this section, the
14 department shall issue a temporary license that includes:

15 1. The name of the facility.

16 2. The name of the licensee.

17 3. The facility's class or subclass.

18 4. The temporary license's effective date.

19 5. The location of the licensed premises.

20 M. A facility may begin operating on the effective date of the
21 temporary license.

22 N. The director may cease the issuance of temporary licenses at any
23 time if the director believes that public health and safety is endangered.

24 O. An outpatient treatment center that is exempt from licensure
25 pursuant to section 36-402, subsection A, paragraph 12 is subject to
26 reasonable inspection by the department if the director has reasonable
27 cause to believe that patient harm is or may be occurring at that
28 outpatient treatment center. A substantiated complaint that harm is
29 occurring at an exempt outpatient treatment center is a violation of this
30 chapter against the license of the hospital listed in the notice required
31 by section 36-402, subsection A, paragraph 12.

32 P. Each hospital that is licensed pursuant to this chapter shall
33 provide to and maintain with the department a current list of exempt
34 outpatient treatment centers that have the same direct owner or indirect
35 owner as the hospital.

36 Q. For the purposes of this section:

37 1. "Accredited" means accredited by a nationally recognized
38 accreditation organization.

39 2. "Satellite facility" means an outpatient facility at which the
40 hospital provides outpatient medical services. >>

41 <<Sec. 17. Section 36-425, Arizona Revised Statutes, is amended to
42 read:

43 36-425. Inspections; issuance of license; posting
44 requirements; provisional license; denial of
45 license

46 A. On receipt of a properly completed application for a health care
47 institution license, the director shall conduct an inspection of the
48 health care institution as prescribed by this chapter. If an application
49 for a license is submitted due to a planned change of ownership, the

1 director shall determine the need for an inspection of the health care
2 institution. Based on the results of the inspection and after the
3 submission of the applicable licensing fee, the director shall either deny
4 the license or issue a regular or provisional license. A license issued
5 by the department shall be posted in a conspicuous location in the
6 reception area of that health care institution.

7 B. The director shall issue a license if the director determines
8 that an applicant and the health care institution for which the license is
9 sought substantially comply with the requirements of this chapter and
10 rules adopted pursuant to this chapter and the applicant agrees to carry
11 out a plan acceptable to the director to eliminate any deficiencies. The
12 director shall not require a health care institution that was designated
13 as a critical access hospital to make any modifications required by this
14 chapter or rules adopted pursuant to this chapter in order to obtain an
15 amended license with the same licensed capacity the health care
16 institution had before it was designated as a critical access hospital if
17 all of the following are true:

18 1. The health care institution has subsequently terminated its
19 critical access hospital designation.

20 2. The licensed capacity of the health care institution does not
21 exceed its licensed capacity before its designation as a critical access
22 hospital.

23 3. The health care institution remains in compliance with the
24 applicable codes and standards that were in effect at the time the
25 facility was originally licensed with the higher licensed capacity.

26 C. A health care institution license does not expire and remains
27 valid unless:

28 1. The department subsequently revokes or suspends the license.

29 2. The license is considered void because the licensee did not pay
30 the licensing fee, civil penalties or provider agreement fees before the
31 relevant due date or did not enter into an agreement with the department
32 before the relevant due date to pay all outstanding fees or civil
33 penalties.

34 D. Except as provided in section 36-424, subsection B and
35 subsection E of this section, the department shall conduct a compliance
36 inspection of a health care institution to determine compliance with this
37 chapter and rules adopted pursuant to this chapter at least once annually.

38 E. If the department determines a facility, except for a
39 residential care institution or a nursing care institution that does not
40 have the same direct owner or indirect owner as a hospital licensed
41 pursuant to this chapter, to be deficiency free on a compliance survey,
42 the department shall not conduct a compliance survey of that facility for
43 twenty-four months after the date of the deficiency free survey. This
44 subsection does not prohibit the department from enforcing licensing
45 requirements as authorized by section 36-424.

46 F. A hospital licensed as a rural general hospital may provide
47 intensive care services.

48 G. The director shall issue a provisional license for a period of
49 not more than one year if an inspection or investigation of a currently

1 licensed health care institution or a health care institution for which an
2 applicant is seeking a license reveals that the health care institution is
3 not in substantial compliance with department licensure requirements and
4 the director believes that the immediate interests of the patients and the
5 general public are best served if the health care institution is given an
6 opportunity to correct deficiencies. The applicant or licensee shall
7 agree to carry out a plan to eliminate deficiencies that is acceptable to
8 the director. The director shall not issue consecutive provisional
9 licenses to a single health care institution. The director shall not
10 issue a license to the current licensee or a successor applicant before
11 the expiration of the provisional license unless the health care
12 institution submits an application for a substantial compliance survey and
13 is found to be in substantial compliance. The director may issue a
14 license only if the director determines that the health care institution
15 is in substantial compliance with the licensure requirements of the
16 department and this chapter. This subsection does not prevent the
17 director from taking action to protect the safety of patients pursuant to
18 section 36-427.

19 H. Subject to the confidentiality requirements of articles 4 and 5
20 of this chapter, title 12, chapter 13, article 7.1 and section 12-2235,
21 the licensee shall keep current department inspection reports at the
22 health care institution. Unless federal law requires otherwise, the
23 licensee shall post in a conspicuous location a notice that identifies the
24 location at that health care institution where the inspection reports are
25 available for review.

26 I. A health care institution shall immediately notify the
27 department in writing when there is a change of the chief administrative
28 officer specified in section 36-422, subsection A, paragraph 1,
29 subdivision (g).

30 J. When the department issues an original license or an original
31 provisional license to a health care institution, it shall notify the
32 owners and lessees of any agricultural land within one-fourth mile of the
33 health care institution. The health care institution shall provide the
34 department with the names and addresses of owners or lessees of
35 agricultural land within one-fourth mile of the proposed health care
36 institution.

37 K. In addition to the grounds for denial of licensure prescribed
38 pursuant to subsection A of this section, the director may deny a license
39 because an applicant or anyone in a business relationship with the
40 applicant, including stockholders and controlling persons, has had a
41 license to operate a health care institution denied, revoked or suspended
42 or a license or certificate issued by a health profession regulatory board
43 pursuant to title 32 or issued by a state agency pursuant to ~~{{chapter 6,~~
44 ~~article 7 or}}~~ chapter 17 of this title denied, revoked or suspended or
45 has a licensing history of recent serious violations occurring in this
46 state or in another state that posed a direct risk to the life, health or
47 safety of patients or residents.

48 L. In addition to the requirements of this chapter, the director
49 may prescribe by rule other licensure requirements.>>

1 <<Sec. 18. Section 36-3601, Arizona Revised Statutes, is amended to
2 read:

3 36-3601. Definitions

4 For the purposes of this chapter:

5 1. "Health care decision maker" has the same meaning prescribed in
6 section 12-2801.

7 2. "Health care provider":

8 (a) Means a person licensed pursuant to title 32, chapter 7, 8, 13,
9 14, 15, 15.1, 16, 17, 18, 19, 19.1, 25, 28, 29, 33, 34, 35, 39, 41 or 42,
10 or chapter 4, article 6 of this title~~{{, chapter 6, article 7 of this~~
11 ~~title}}~~ or chapter 17 of this title.

12 (b) Includes:

13 (i) A health care institution licensed pursuant to chapter 4 of
14 this title.

15 (ii) A person who holds a training permit pursuant to title 32,
16 chapter 13 or 17.

17 3. "Health care provider regulatory board or agency" means a board
18 or agency that regulates one or more health care provider professions in
19 this state.

20 4. "Telehealth" means:

21 (a) The interactive use of audio, video or other electronic media,
22 including asynchronous store-and-forward technologies and remote patient
23 monitoring technologies, for the practice of health care, assessment,
24 diagnosis, consultation or treatment and the transfer of medical data.

25 (b) Includes the use of an audio-only telephone encounter between
26 the patient or client and health care provider if an audio-visual
27 telehealth encounter is not reasonably available due to the patient's
28 functional status, the patient's lack of technology or telecommunications
29 infrastructure limits, as determined by the health care provider.

30 (c) Does not include the use of a fax machine, instant messages,
31 voice mail or email.>>

32 <<Sec. 19. Succession

33 ~~{{A. As provided by this act, the naturopathic physicians medical~~
34 ~~board succeeds to the authority, powers, duties and responsibilities of~~
35 ~~the department of health services relating to the licensure and regulation~~
36 ~~of midwives pursuant to title 36, chapter 6, article 7, Arizona Revised~~
37 ~~Statutes.~~

38 ~~B. This act does not alter the effect of any actions that were~~
39 ~~taken or impair the valid obligations of the department of health services~~
40 ~~relating to the licensure and regulation of midwives pursuant to title 36,~~
41 ~~chapter 6, article 7, Arizona Revised Statutes, in existence before the~~
42 ~~effective date of this act.~~

43 ~~C. All rules adopted by the department of health services pursuant~~
44 ~~to title 36, chapter 6, article 7, Arizona Revised Statutes, remain in~~
45 ~~full force until superseded by administrative action by the naturopathic~~
46 ~~physicians medical board.~~

1 D. All administrative matters, contracts and judicial and
2 quasi-judicial actions, whether completed, pending or in process, of the
3 department of health services relating to the licensure and regulation of
4 midwives pursuant to title 36, chapter 6, article 7, Arizona Revised
5 Statutes, on the effective date of this act are transferred to and retain
6 the same status with the naturopathic physicians medical board.

7 E. All certificates, licenses and other indicia of qualification
8 and authority that were issued by the department of health services
9 pursuant to title 36, chapter 6, article 7, Arizona Revised Statutes,
10 retain their validity for the duration of their terms of validity as
11 provided by law.

12 F. All records and other property, all data and investigative
13 findings, all obligations and all appropriated monies that remain
14 unexpended and unencumbered on the effective date of this act of the
15 department of health services relating to the licensure and regulation of
16 midwives pursuant to title 36, chapter 6, article 7, Arizona Revised
17 Statutes, are transferred to the naturopathic physicians medical
18 board.}}>>

19 <<Sec. 20. Expenditure authority

20 {{Notwithstanding any other law, the naturopathic physicians medical
21 board may spend for the purposes of this act any monies transferred from
22 the department of health services relating to the licensure and regulation
23 of midwives and any monies appropriated to the naturopathic physicians
24 medical board in fiscal year 2026-2027.}}>>

25 <<Sec. 21. Effective date

26 {{Section 32-1505, Arizona Revised Statutes, as amended by Laws
27 2024, chapter 222, section 18 and this act, is effective from and after
28 June 30, 2028.}}>>

29 Sec. 22. Short title

30 This act may be cited as the "Jordan and Mack Terry Act".

31 Enroll and engross to conform

32 Amend title to conform

DAVID C. FARNSWORTH

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